

26PR00365 Estate of Miguel Felix

County: santa-barbara

Division: Decedent's Estate

Hearing date: 2026-09-15

Motion: Petition for Probate and Letters Testamentary

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Tentative Ruling: Estate of Miguel Felix

Case Number

26PR00365

Case Type

Decedent's Estate

Hearing Date / Time

Tue, 09/15/2026 - 09:00

Nature of Proceedings

Petition for Probate and Letters Testamentary

Tentative Ruling

Probate Notes:

On July 29, 2026, Rosario Athie filed a Petition for Probate of Will and Letters Testamentary. That petition received objection by Bernardo Valadez Alcantar on September 11, 2026. The objection places this matter at issue and requires evidentiary hearing to resolve. (In re Estate of Lensch (2009) 177 Cal.App.4th 667, 676; Conservatorship of Farrant (2021) 67 Cal.App.5th 370, 377.)

That opposition contained an objection to the will and to the appointment of the personal representative.

Due to the objection, the following must be submitted by Bernardo Valadez Alcantar:

Competing Petition. A contest to a petition for administration of a decedent's estate may involve a contest to the appointment of the personal representative, a contest to the will, or both.

When appointment of a personal representative is contested, Probate Code section 8004 requires a written objection and competing petition be filed and served in accordance with Probate Code section 8110 [15 days, mail or personal service to all entitled to take by intestate, and each devisee, executor, and alternative executor]. (Prob. Code, § 8004, subd. (a).) The competing petition need not be published as long as publication of the first petition was completed according to statute.

There is no competing petition on file. Objector must file a competing petition for letters of administration on form DE-111, before an evidentiary hearing can be set.

Proof of Service of Summons. When a will is contested, Probate Code section 8250 requires a written objection to probate of the will be filed, and a copy of the objection along with a summons be served to all those entitled to notice listed in section 8110 [all entitled to take by intestate, and each devisee, executor, and alternative executor]. The summons must be served according to the procedures in the Code of Civil Procedure Title 5, Part 2, Chapters 3 and 4 [§ 412.10 et seq].

The petitioning party may file an answer to the objection, or demur, within 30 days after service of the summons. (Prob. Code, § 8250, subd(a) and 8251, subd. (a).) If a party fails to respond to a served summons within 30 days, the case is still at issue, but the non-responding party loses the right to further contest the appointment or the will. (Prob. Code, § 8251, subd. (c).)

The following defects must be corrected by Rosario Athie:

Proof of Service of Notice of Hearing (Form DE-121). Notice must be given 15 days prior to hearing, served on all known heirs and devisees, as well as on the Personal Representative (if not the petitioner) and special notice requestors. (Prob. Code, §§ 8100 & 8110.) Notice must be sent to the person, not the person's representative. (§1220.) No such document was filed.

Duties and Liabilities Acknowledgement (Form DE-147). The proposed personal representative must fill out and sign this form and submit it to the court. (Prob. Code, § 8404.) No such form was submitted.

Waivers of Bond. Since there is no original will on file, bond must be waived by all adult heirs at law. Petitioner must file bond waivers (Form DE-142) for all heirs or devisees named in a will.

Trust Instrument. The Petition and accompanying documents reveal the existence of a trust. A copy of the trust, and all accompanying amendments, must be submitted for review, to ensure compliance with the Decedent's testamentary intent and notice to individuals who might otherwise not be given notice. (Local Rule, 1791(c).)

Original Will or Petition for Custodian to Deliver Original Will. An original will and any codicil to that will must be lodged with the Court. (Prob. Code, §§ 8200, et seq.) It is insufficient to attach a copy of the will to the petition without lodging the original.

Since petitioner alleges the original will is either destroyed or withheld by the person in possession of the will (i.e. "custodian"), petitioner must bring a separate petition against the custodian of the will in order to produce the will. (See Prob. Code, § 8201.)

Proposed Order (Form DE-140). A proposed order must be submitted with relief that matches that requested in the petition. No such document was filed with the court.

Proposed Letters (Form DE-150). Proposed letters must be submitted with relief that matches that requested in the petition. No such document was filed with the court.

It is recommended that the matter be continued to a date to be set by the Court at the hearing, unless the party appears and requests a different date, or submits a request for a different continuance date prior to the hearing. (Local Rule 1721(c)(2)(A-B).) If the matter is continued, documents must be submitted at least 10 days prior to the new hearing date to be considered.

Due to staffing limitations, processing times may be delayed. To assist in processing, attorneys and parties should include the next court date in the "Filing Description" field provided by the electronic service provider. That field is also used for further descriptions of the document being e-filed, so be sure to put the calendar date FIRST in the field – BEFORE any further description of the document being e-filed (e.g.: 06/28/16 For XYZ).

Judges

Judge James Rigali

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